

Counsel for JDR filed memo along with copy of Judgment in RFA No.958/2023 wherein the Judgment and decree dated 25.11.2022 passed in OS No. 2938/2007 is set aside and the matter has been remitted back to this Court for fresh Trial by considering the claim of plaintiff and counterclaim of defendant.

Further it is forthcoming that as per the order of Hon'ble High Court of Karnataka, Bangalore in RFA and as per the directions given their in the parties already appeared before this court on 24.03.2025 in OS No. 2938/2007 and the matter is restored for further trial.

Hence in view of the same the present execution petition becomes in-fructuous and needs to be disposed off accordingly.

Hence I proceed to pass the following

ORDER

In view of remitting of OS No. 2938/2007 as per the order of Hon'ble High Court of Karnataka, Bangalore in RFA 958/2023, the execution petition is dismissed as does not survive for consideration.

XXIV A & SJ, B'LURU.